

Calendar Line 6

Case Name: *Holman v. Equinix, LLC*
Case No.: 24CV438270

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement by order filed February 26, 2026. Before the Court is Plaintiff's motion for final approval of the settlement. The motion is unopposed.

As discussed below, the Court finds that the notice process was adequate and that the settlement is fair, reasonable, and adequate. Nevertheless, the parties have not satisfied the condition imposed at preliminary approval that they designate a *cy pres* beneficiary for uncashed settlement funds in compliance with Code of Civil Procedure section 384. The settlement agreement and the class notice as mailed continue to direct that uncashed funds be transmitted to the State Controller's Unclaimed Property Fund, a disposition the Court has already found does not comply with section 384. Accordingly, the Court CONTINUES the hearing on the motion for final approval to September 9, 2026 at 1:30 p.m. in Department 5 and orders the parties to cure this deficiency as set forth in Part IV below.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys

General Act (“PAGA”). The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[A]ll persons who worked for Equinix in California as an hourly-paid, non-exempt employee and received wages for hours worked at any time during the Class Period [May 7, 2020 through June 10, 2025].

(Declaration of Kane Moon in Support of Motion for Preliminary Approval, Ex. 1 (“Agreement”), ¶¶ 1.E, 1.FF.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as “all persons who worked for Equinix in California as an hourly-paid, non-exempt employee and received wages for hours worked at any time during the PAGA Period [May 7, 2023 through June 10, 2025].” (*Id.* at ¶¶ 1.B, 1.T.)

Defendant will pay a gross settlement amount of \$1,375,000, and this amount includes: attorney fees of up to 35 percent of the gross settlement amount (\$481,250); litigation costs not to exceed \$25,000; a PAGA penalties allocation of \$137,500 (75 percent of which, or \$103,125, will be paid to the LWDA, and 25 percent of which, or \$34,375, will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$7,500 to Plaintiff; and settlement administration costs up to \$20,000. (Motion, pp. 5-8; Agreement, ¶¶ 1.L, 12–15.) The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of qualifying workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of

qualifying pay periods worked. (Agreement, ¶¶ 11, 15.) The settlement is non-reversionary; no portion of the gross settlement amount will revert to Defendant. (*Id.* at ¶ 1.L.)

The Agreement provides that Phoenix Class Action Administration Solutions (“Phoenix”) will serve as settlement administrator, and the Court appointed Phoenix at preliminary approval. (Agreement, ¶ 1.EE.) The Agreement further provides that any funds from uncashed settlement checks will be transmitted to the California State Controller’s Office Unclaimed Property Fund in the name of the individual. (*Id.* at ¶ 11.A.) As discussed in Part IV below, this provision does not comply with Code of Civil Procedure section 384, and it remains an unresolved condition of approval.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “any and all claims that have been or could reasonably have been asserted based on the factual allegations in the Operative Complaint” for the duration of the Class Period, including related claims under the federal Fair Labor Standards Act. (Agreement, ¶¶ 1.Z, 7.A.) Aggrieved Employees will be deemed to release Defendant and related entities and persons from all claims for PAGA civil penalties that were alleged or could reasonably have been alleged based on the same facts alleged in the operative Complaint and the PAGA notices, arising during the PAGA Period. (*Id.* at ¶ 7.B.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court approved Phoenix as settlement administrator. On March 24, 2026, Defendant delivered the class data to Phoenix, and the Class List contained 563 Class Members and 366 Aggrieved Employees. (Declaration of Taylor Mitzner (“Mitzner Decl.”), ¶¶ 3, 14.) On March 25, 2026, Phoenix performed a National Change of Address search to update the mailing addresses. (*Id.* at ¶ 4.) On March 30, 2026, Phoenix mailed the Class Notice, in English and Spanish, to all 563 Class Members. (*Id.* at ¶ 5 and Ex. A.) No notices were returned as undeliverable. (*Id.* at ¶ 6.)

The deadline to request exclusion, submit a written objection, or submit a workweek dispute was May 29, 2026. (*Id.* at ¶¶ 7–9.) As of the date of Mr. Mitzner’s declaration, Phoenix had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Ibid.*) All 563 Class Members (100 percent of the Class) therefore remain in the Class. (*Id.* at ¶ 10.) Phoenix estimates the average individual settlement share will be approximately \$1,281.81, and the average individual PAGA payment will be approximately \$93.92; the net settlement amount available for distribution is \$721,659.47. (*Id.* at ¶¶ 12–14.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, the Court finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair, reasonable, and adequate for purposes of final approval.

III. Service Award, Attorney Fees, and Costs

Plaintiff seeks a service award of \$7,500. Plaintiff has provided a declaration detailing his participation in this litigation (including approximately 30 hours devoted to the case) and the reputational and other risks he undertook as the named plaintiff. (Declaration of Edward Holman, ¶¶ 12-13, 22.) The Court finds that a service award is justified and that the amount requested is reasonable. The Court is prepared to approve the service award in the amount requested.

Class Counsel seek an attorney fee award of \$481,250, equal to 35 percent of the gross settlement amount. (Motion, pp. 16:19–21:16; Moon Decl., ¶¶ 65–69.) As a cross-check, Class Counsel represent that their lodestar is \$175,450, based on 218.2 hours of attorney time at their customary hourly rates, which yields a multiplier of approximately 2.74. (Moon Decl., ¶¶ 66, 69.) While a multiplier of 2.74 is at the higher end of the range, the Court recognizes the contingent risk Class Counsel assumed, the results achieved for the Class. The Court is prepared to approve the requested fee once the defect related to Code of Civil Procedure section 384 has been cured, as discussed below.

Class Counsel request reimbursement of litigation costs in the amount of \$16,590.53, and they provide an itemized accounting in support. (Moon Decl., ¶¶ 16, 73, Ex. 4.) This amount is below the \$25,000 cap set by the Agreement, with the difference reverting to the net settlement amount. The Court finds the request reasonable. Settlement administration costs of \$10,500 (below the \$20,000 cap) are likewise supported and reasonable. (Mitzner Decl., ¶ 16, Ex. B.) The Court is prepared to approve reimbursement of litigation costs and settlement administration costs in the requested amounts.

IV. Compliance with Code of Civil Procedure Section 384

Only one matter remains that precludes final approval at this time – the disposition of uncashed settlement funds. In its order granting preliminary approval, the Court expressly considered and rejected the parties’ proposal to transmit uncashed checks to the State Controller’s Unclaimed Property Fund. Defense counsel argued at the preliminary approval hearing that the Court should approve the settlement without a *cy pres* designation under section 384; the Court found that “doing so would be contrary to the clear language, policy and intent of section 384,” and required the parties to designate a section 384 compliant *cy pres* beneficiary.

The Court conditioned preliminary approval on the parties (i) meeting and conferring to designate a *cy pres* beneficiary in writing, (ii) submitting a supplemental declaration amending the Settlement Agreement to comply with section 384, and (iii) revising the class notice accordingly, all within 10 court days of the February 26, 2026 order.

Section 384, subdivision (b), requires the court to ensure that unpaid residue or unclaimed or abandoned class member funds be paid “to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent.” (Code Civ. Proc., § 384, subd. (b).)

The present motion does not demonstrate compliance with that condition. No *cy pres* beneficiary has been designated. To the contrary, the operative Settlement Agreement (¶ 11.A)

and the Class Notice as actually mailed both continue to provide that uncashed checks will be sent to the State Controller's Unclaimed Property Fund. (Mitzner Decl., Ex. A.) Rather than curing the deficiency, the motion (Part V) renews the very argument the Court already rejected, contending that, because uncashed funds are deposited with the Unclaimed Property Fund in each individual's name, there will be no "unpaid residue" and section 384 is not implicated. The Court is not persuaded and reaffirms its prior ruling. Directing abandoned class funds to the Unclaimed Property Fund does not satisfy section 384's requirement that such funds be devoted to the statutorily enumerated *cy pres* purposes.

Accordingly, on or before August 26, 2026, the parties shall meet and confer and designate a *cy pres* beneficiary in compliance with Code of Civil Procedure section 384 and shall submit a supplemental declaration incorporating an amendment or modification of the Settlement Agreement to that effect. The parties shall also address whether the change to the uncashed-funds provision requires any supplemental or corrective notice to the Class. The Court will address final approval, including the service award and the requested fees and costs, at the continued hearing.

V. Conclusion

The hearing on Plaintiff's motion for final approval of the settlement is CONTINUED to September 9, 2026 at 1:30 p.m. in Department 5. On or before August 26, 2026, the parties shall designate a section 384-compliant *cy pres* beneficiary, submit a supplemental declaration amending the Settlement Agreement accordingly, and address any resulting notice issues, as set forth in Part IV above. In all other respects the Court finds the settlement fair, reasonable, and adequate, and is prepared to grant final approval once the section 384 deficiency is cured.

The Court will prepare the order.

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Calendar Line 7

Case Name: *Loveless v. Essential Behavioral Support, Inc.*

Case No.: 24CV447769

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. INTRODUCTION

This putative class and representative action arises from various alleged wage and hour violations. On December 6, 2024, plaintiff Tracy Loveless (“Plaintiff”) filed the First Amended Complaint (“FAC”) against defendant Essential Behavioral Support, Inc. (“Defendant”). The FAC sets forth the following causes of action: (1) failure to pay minimum and straight time wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to authorize and permit rest periods; (5) failure to timely pay final wages at termination; (6) failure to provide accurate itemized wage statements; (7) failure to indemnify employees for expenditures; (8) failure to produce requested employment records; (9) unfair business practices; and (10) civil penalties under the Labor Code Private Attorneys General Act of 2004 (“PAGA”).

Plaintiff now seeks an order: granting preliminary approval of class action settlement agreement; preliminarily certifying the class for settlement purposes; appointing Plaintiff as class representative; appointing Plaintiff’s counsel, Tyler Woods, James Yoo, Heriberto Ponce, Ruby Carrera, Alan Wilcox, and Conor J.D. Gomez of Wilshire Law Firm, PLC as class counsel; approving the notice form and procedure; appointing Apex Class Action, LLC (“Apex”) as administrator; and scheduling a final approval hearing.

II. LEGAL STANDARD

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235 (*Wershba*)),